

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Higginbotham	Team: Team # 8	CCRB Case #: 200700292	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/08/2006 12:00 AM, Saturday, 12/09/2006 7:35 PM	Location of Incident: Prince Street between Tillary Street and Myrtle Avenue; Fulton Street and South Portland Avenue	18 Mo. SOL 6/9/2008	Precinct: 88		
Date/Time CV Reported Wed, 01/03/2007 4:18 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/08/2007 2:43 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Brunetti	23559	918633	088 PCT
2. POM Charles Sperco	13094	929200	088 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Charlton Telford	01993	923244	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Brunetti	Abuse: On November 8, 2006, PO Joseph Brunetti stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Charles Sperco	Abuse: On November 8, 2006, PO Charles Sperco stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Joseph Brunetti	Force: On November 8, 2006, PO Joseph Brunetti pointed his gun at § 87(2)(b)	C . Unfounded
D . POM Charles Sperco	Force: On November 8, 2006, PO Charles Sperco pointed his gun at § 87(2)(b)	D . Unfounded
E . POM Charles Sperco	Discourtesy: On November 8, 2006, PO Charles Sperco spoke rudely to § 87(2)(b)	E . Unfounded
F . Officers	Force: On November 8, 2006, officers pointed their guns at § 87(2)(b)	F . Unfounded
G . Officers	Abuse: On November 8, 2006, officers searched the car in which § 87(2)(b) was an occupant.	G . Unfounded
H . POM Joseph Brunetti	Abuse: On December 9, 2006, PO Joseph Brunetti stopped the car in which § 87(2)(b) was an occupant.	H . Unsubstantiated
I . POM Charles Sperco	Abuse: On December 9, 2006, PO Charles Sperco stopped the car in which § 87(2)(b) was an occupant.	I . Unsubstantiated
J . POM Joseph Brunetti	Force: On December 9, 2006, PO Joseph Brunetti pointed his gun at § 87(2)(b)	J . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
K . POM Charles Sperco	Force: On December 9, 2006, PO Charles Sperco pointed his gun at § 87(2)(b)	K . Unsubstantiated
L . POM Joseph Brunetti	Abuse: On December 9, 2006, PO Joseph Brunetti stopped § 87(2)(b)	L . Unsubstantiated
M . POM Joseph Brunetti	Force: On December 9, 2006, PO Joseph Brunetti used physical force against § 87(2)(b)	M . Unsubstantiated
N . POM Charles Sperco	Abuse: On December 9, 2006, PO Charles Sperco searched the car in which § 87(2)(b) was an occupant.	N . Unsubstantiated

Synopsis

On November 8, 2006, at approximately 10:00 PM, PO Joseph Brunetti and PO Charles Sperco from the 88th Precinct anti-crime team stopped § 87(2)(b)'s vehicle at Myrtle Avenue and Prince Street in Brooklyn (Allegation A, B). The officers allegedly pointed their firearms at § 87(2)(b) and the unidentified driver of the vehicle (Allegation C, D) and PO Sperco allegedly said, "Don't fucking move," (Allegation E). The driver of the vehicle drove away, travelling down Prince Street, when a marked patrol car drove the wrong way up Prince Street towards § 87(2)(b)'s car. The unidentified officers inside the marked car got out of their vehicle and pointed their firearms at § 87(2)(b) (Allegation F). He got out of the car and officers handcuffed him and searched his entire vehicle including the trunk (Allegation G). He was arrested for criminal possession of a controlled substance.

On December 9, 2006, § 87(2)(b) was in the back of a livery cab which was stopped by PO Brunetti and PO Sperco at Fulton Street and South Portland Avenue in Brooklyn (Allegation H, I), who again had their firearms pointed at § 87(2)(b) (Allegation J, K). PO Brunetti pulled § 87(2)(b) out of the car (Allegation L), handcuffed him and then put him on the car and punched him in the face (Allegation M). PO Sperco searched the backseat of the livery cab (Allegation N). § 87(2)(b) was again arrested for criminal possession of a controlled substance.

§ 87(2)(g)
it is recommended that Allegation A and B be closed Exonerated. § 87(2)(g)

it is recommended that Allegations C, D, E, F and G be closed Unfounded. § 87(2)(g)

it is recommended that Allegations H, I, J, K, L, M and N be closed Unsubstantiated.

Summary of Complaint

§ 87(2)(b)

On December 29, 2006, § 87(2)(b) called IAB to report the misconduct of a New York City police officer (encl.5a-c). On January 8, 2007, § 87(2)(b)'s allegations were spun off to CCRB (encl.6a-c). On January 10, 2007, § 87(2)(b) provided a phone statement to CCRB (encl.7). On January 12, 2007, § 87(2)(b) provided an official statement to CCRB (encl.8a-e). On March 6, 2007, IAB re-interviewed § 87(2)(b) (encl.9a-b). § 87(2)(g)

is a § 87(2)(b)-old black male with black hair and brown eyes. § 87(2)(b)

On November 8, 2006, a little after 8:00 p.m., § 87(2)(b) was at a wake for one of his son's friends. He ran into an old friend, § 87(2)(b) whose last name he did not know. People at the wake began to say that they were going to "get the guy" who killed the person who was responsible for the killing of his son's friend, so § 87(2)(b) decided to leave. He and § 87(2)(b) decided to get something to eat and went to § 87(2)(b)'s car, a 1998 dark blue Mercedes Benz E320. § 87(2)(b) asked to drive, and § 87(2)(b) allowed him to do so, sitting in the passenger's seat. It was raining that night and they had the windows of the car rolled up. § 87(2)(b) pulled the car over on Myrtle Avenue, right before the intersection of Prince Street. He pulled over into a legal parking zone, behind the no standing zone. § 87(2)(b) made a five-minute phone call to an unknown female, and § 87(2)(b) turned down the music playing in the car. As they were about to pull off the side of Myrtle Avenue, two unknown males knocked on the window approached the car from the passenger's side and the driver's side with their guns drawn and pointed inside the car towards § 87(2)(b) and § 87(2)(b) (Allegations A, B, C and D). The officer on the driver's side, identified through investigation as PO Charles Sperco from the 88th Precinct, said, "Don't fucking move," (Allegation E). § 87(2)(b) was unable to see the individuals because his car is a low-rider, but he later learned the one of the individuals was PO Joseph Brunetti from the 88th Precinct, a slim, white male with a moustache and beard. He was in his forties. He never learned PO Sperco's name, and only recalled that he was a stocky, white male. He did not know which officer was on the passenger's side and which officer was on the driver's side.

Because § 87(2)(b) and § 87(2)(b) did not know that PO Sperco and PO Brunetti were police officers, § 87(2)(b) turned the car right onto Prince Street, a one-way, single lane street. As they drove down, a marked police vehicle drove up the street. § 87(2)(b) stopped the car, put it in park, jumped out of the driver's seat and ran in the direction of Ingersoll Houses. The two officers inside got out of their car with their guns drawn

and pointed towards § 87(2)(b)'s car (Allegation F). PO3 got out of the driver's seat. He was a black male officer in uniform. He was about 6 feet tall and had a large build. He was in his late thirties, and had a low haircut. PO4 got out of the passenger's seat. PO4 was a black female in uniform who was short and had a medium build. She was young and had long hair in braids. § 87(2)(b) exited the vehicle. The officers directed him to put his hands up, and he complied. PO3 approached § 87(2)(b) and put his hands behind his back, handcuffing him. PO3 patted him down outside of his clothes. PO4 began to search the vehicle in the passenger's seat area and the backseat. She looked under the seats and ran her hands under the seat (Allegation G). Two white uniformed males arrived onscene and also helped to search the car. § 87(2)(b)'s friend, § 87(2)(b) witnessed his interaction with the officers because he was in the area.

PO3 led § 87(2)(b) to the back fender of the car and searched his pockets. The officers put him in the RMP and PO4 sat in the RMP with him. PO3 asked him how to open the trunk, and § 87(2)(b) provided PO3 with instructions as to how to open the car trunk. § 87(2)(b) saw the car trunk open, but did not see who was looking inside. The officers drove him into Ingersoll Houses, where he was put in a marked car with two white males in uniform and transported to the precinct. There he was brought out of the holding cell by PO Brunetti, who told § 87(2)(b) that he had run from him. PO Brunetti and other officer questioned § 87(2)(b) about his son, § 87(2)(b). § 87(2)(b) noted that his sons look very similar to him. The officers stated that they wanted to question § 87(2)(b) because three acquaintances of his had been murdered. § 87(2)(f) However, § 87(2)(b) did not know what he was being charged with, and refused to give information about § 87(2)(b). At Central Booking, § 87(2)(b) learned that he was being charged with possession of an ounce of cocaine.

§ 87(2)(b) was later informed by his lawyer that he was being accused of running away from the police and throwing a bag over his shoulder as he did. He stated that he did not have any narcotics on his person at any point that day. He stated that there were no narcotics in his vehicle.

§ 87(2)(b) provided a photograph to the CCRB that he took of the location where his vehicle was standing on November 8, 2006, revealing that he was standing in a "No Standing" zone.

On December 9, 2006, § 87(2)(b) called § 87(2)(b) at 6:54 p.m. Car #18 picked him up about 5 minutes later from his home. Outside his home, § 87(2)(b) saw a burgundy four-door sedan that he often saw outside his apartment building. § 87(2)(b) called his wife, § 87(2)(b), and told her the license plate number, and she confirmed that it was the same car that they usually see. § 87(2)(b) got in the cab, and went to § 87(2)(b), property he owns, to pick up \$150 from the landlord, § 87(2)(b) which he was owed for rent. The cab stopped at that location, and § 87(2)(b) came outside to give him the money. § 87(2)(b) did not get out of the cab. § 87(2)(b) took the money, then directed the cab to go to the Commerce Bank on Court Street. The cab drove down Fulton Street and made a right on South Oxford Street.

The burgundy car pulled over the cab (Allegation H, I). Two officers exited the burgundy vehicle and each officer approached one side of the backseat of the car, pointing their guns into the backseat, towards § 87(2)(b) (Allegation J, K). The officer standing on the passenger's side of the car was PO Brunetti. PO Sperco yelled to the driver to open the car doors. Both officers opened the back doors of the livery cab and PO Brunetti pulled § 87(2)(b) out of the car by the front of his shirt (Allegation L). § 87(2)(b) stumbled on a bump in the road and fell to his right knee. He received a small abrasion. The officers handcuffed him.

PO Sperco patted down § 87(2)(b) then searched around the backseat of the livery cab (Allegation N). § 87(2)(b) was yelling to passers-by and "talking trash" to PO Brunetti. PO Sperco put § 87(2)(b) against the hood of the car and searched his pockets, removing his mortgage papers and the approximately \$4000 § 87(2)(b) was carrying. PO Sperco asked how much money § 87(2)(b) was carrying, then gave it to PO Brunetti, who put it in his pocket. When § 87(2)(b) spoke to IAB in March 2007, he said that PO Brunetti took the money from his pocket and said, § 87(2)(b) "what are you doing with all this money again?" PO Sperco untied § 87(2)(b)'s shoes and asked him to step out of his shoes, which he did. He attempted to put his feet back in his shoes and was stumbling. PO Brunetti slammed him face first against the car. § 87(2)(b) continued to yell, and PO Brunetti told him to "Shut up," and said, "I told you I was going to get you." When § 87(2)(b) initially spoke to IAB, he alleged that PO Brunetti said, "Shut the fuck up. I told you I was going to get you." PO Brunetti punched § 87(2)(b) on the right side of his face, as the left side of his face was pressed onto the patrol car (Allegation M). In his initial statement to IAB, § 87(2)(b) stated that PO Brunetti punched him twice in the face. In his statement to IAB in March 2007, he alleged that PO Brunetti pulled him from the car but never alleged that PO Brunetti hit him with a

closed fist. A black male officer in plainclothes with a gold shield around his neck, who § 87(2)(b) referred to as a sergeant and was identified through investigation as Sgt. Charlton Telford from the 88th Precinct, arrived on scene at some point. Sgt. Telford had a small amount of facial hair and was wearing a hat. He was wearing street clothes. The officers transported § 87(2)(b) to the precinct. He was charged with possession of narcotics again, although he had no contraband on his person.

Results of Investigation

Civilian Statements

§ 87(2)(b)

On September 12, 2007, § 87(2)(b) provided a phone statement to the CCRB (encl.10). § 87(2)(b) was identified by a Motor Vehicle Accident Report created by PO Brunetti on November 8, 2006. On that date, § 87(2)(b) was stopped at a stop light on Prince Street, headed towards Tillary Street, when a Mercedes Benz with its headlights off ran into the back of his car. An individual who § 87(2)(b) was unable to see because it was dark got out of the driver's seat of the car and ran towards § 87(2)(b)'s car, reaching into his jacket and pulling out an unknown object. § 87(2)(b) could not see the object the driver pulled out of his jacket, but believed it was possible that it was a gun and the individual was planning to rob him, so he drove to the nearby BQE ramp and parked there. However, § 87(2)(b) never saw the object and could not say what shape or color it was. He saw the individual running down Tillary Street, towards the nearby projects. He was not paying close attention to the individual and therefore was unaware of whether or not the individual ever dropped the object in his hand. § 87(2)(b) was later told that officers were chasing the individual who ran into his car when he made the accident report at the 88th Precinct.

§ 87(2)(b)

On March 9, 2007, the CCRB spoke to § 87(2)(b) regarding § 87(2)(b)'s arrest on November 8, 2006 (encl.11). § 87(2)(b) stated that on November 8, 2006, he was dropped off at McDonald's after a funeral by § 87(2)(b) and an unknown friend of his who lives in Ingersoll Houses. The unknown friend was driving and § 87(2)(b) was in the passenger's side of the vehicle. After § 87(2)(b) got his food, he saw a huge crowd of people and went to see what was going on. Initially, § 87(2)(b) stated that the crowd was on Tillary in front of the shelter at Tillary Street. Then he stated that § 87(2)(b) was in his car when he first saw him, and that the car was parked "at a slant" on Prince Street. § 87(2)(b) pushed through the crowd and saw a male officer in plainclothes pulling § 87(2)(b) out of the passenger's seat of his car and handcuffing him. § 87(2)(b) asked why he had been arrested. § 87(2)(b) saw an officer drive § 87(2)(b)'s car away. He stated that he does not know where the individual was driving went.

§ 87(2)(b) said that he spoke to § 87(2)(b) about his arrest later, and § 87(2)(b) told him it was for narcotics. § 87(2)(b) was surprised because § 87(2)(b) is not involved in any kind of narcotics transactions.

§ 87(2)(b)

On February 5, 2007, Det. Herrera from IAB's Group 31 interviewed § 87(2)(b) (encl. 12a-b). § 87(2)(b) was employed by § 87(2)(b) on December 9, 2006, driving Car #18. § 87(2)(b) informed IAB at the time of his interview that his address was § 87(2)(b).

On December 9, 2006, § 87(2)(b) picked up an individual later identified as § 87(2)(b) sometime between 9:00 PM and 11:00 PM on Amboy Street in Brooklyn. § 87(2)(b) requested that he be dropped at a location along Tompkins Avenue in Brooklyn and then at a location around Jay Street and Willoughby Street in Brooklyn. They stopped at the location along Tompkins Avenue for only a few minutes. They continued driving, and while § 87(2)(b) was on Fulton Street at the intersection of South Oxford Street, an unmarked vehicle pulled over his vehicle. He pulled over, and a male black officer in plainclothes with a shield around his neck said, "I'm a police officer. Are you alright?" § 87(2)(b)

§ 87(2)(b) said he was fine. The officer walked to the rear of the cab and met up with two or three officers. The officers asked § 87(2)(b) where he was coming from and where he was going and then asked him to step out of the car, searching him. § 87(2)(b) saw an unknown amount of money being placed inside a plastic bag by one of the officers. The officers searched the back seat of the cab. § 87(2)(b) was not able to see whether or not officers found anything in his backseat. An officer approached § 87(2)(b) asking for his license, registration and insurance. However, § 87(2)(b) was not issued a summons.

The CCRB made numerous attempts to contact § 87(2)(b) to get a separate statement from him regarding the incident. However, the CCRB and IAB were both informed that § 87(2)(b) had quit his job soon after his interview with IAB. The CCRB acquired § 87(2)(b)'s cell phone number from an associate at § 87(2)(b) but the number no longer belonged to § 87(2)(b) on April 9, 2007. The CCRB sent letters to § 87(2)(b)'s given address, which were returned as undeliverable. After a Lexis Nexis search returned multiple results for past and current addresses for § 87(2)(b) the CCRB created Verizon subpoenas for all available addresses. The results of the subpoenas were negative. The CCRB sent Postmaster letters for all available addresses with negative results. IAB put out an I-card for § 87(2)(b) and visited his given address after initially interviewing him, but § 87(2)(b) did not provide an additional statement to IAB or any statement to CCRB.

Officer Statements

PO Joseph Brunetti: Memobook (11/08/2006)

On November 8, 2006 at 11:18 PM, PO Brunetti made an arrest in front of 5 Fleet Walk. The defendant's name was § 87(2)(b). The arrest number was § 87(2)(b) (encl.13a-b).

PO Joseph Brunetti: Motor Vehicle Accident Report (11/08/2006)

On November 8, 2006 at 10:00 PM, PO Brunetti created a vehicle accident report for an accident that occurred between § 87(2)(b) and § 87(2)(b) (encl.14a-c).

PO Joseph Brunetti: Arrest Report and Property Vouchers (11/08/2006)

On November 8, 2006 at 10:18 PM, PO Brunetti placed § 87(2)(b) under arrest for two counts of criminal possession of a controlled substance and one count of a vehicle operator leaving the scene of an accident. He wrote that § 87(2)(b) while in possession of a large quantity of cocaine fled from police, causing an accident, and continuing to drive without stopping. § 87(2)(b) was wearing gray jogging clothes and a stocking cap. Pursuant to § 87(2)(b)'s arrest, a large ziplock bag of cocaine and 42 plastic wraps of cocaine were found in a ziplock bag. PO Brunetti wrote that the drugs were recovered from in front of 200 Tillary Street where defendant threw it and vouchered it as arrest evidence. \$1,780.00 was vouchered as arrest evidence as well. § 87(2)(b)'s vehicle was taken from the corner of Prince Street and Tillary Street and vouchered for asset forfeiture as part of a narcotics transaction (encl.15a-f).

PO Joseph Brunetti: Memobook (12/09/2006)

On December 9, 2006, PO Brunetti was present for duty at 4:30 PM. At 7:35 PM he made a crime arrest of § 87(2)(b) of § 87(2)(b). § 87(2)(b) was a black male DOB § 87(2)(b) Arrest number § 87(2)(b) Charges 220.16 and 205.30. Voucher § 87(2)(b)-Cocaine 1 large "8" ball of cocaine. 13 plastic glassine of cocaine- Arrest evidence. § 87(2)(b) USC 1847 arrest evidence. § 87(2)(b) Pink memobook of drug transactions- arrest evidence. § 87(2)(b) cell phones-safekeeping. At time and place of occurrence, defendant was passenger in a livery cab that had defective brake light. Upon stop arresting officer observed defendant place large quantity of cocaine in rear of waistband. Upon attempting to arrest defendant flailed arms refusing to be handcuffed (encl.16a-c).

PO Joseph Brunetti: Arrest Report and Property Vouchers (12/09/2006)

On December 9, 2006, at 7:35 PM, PO Joseph Brunetti placed § 87(2)(b) under arrest for criminal possession of a controlled substance and resisting arrest. He wrote that § 87(2)(b) was in a large quantity of cocaine and that he flailed his arms upon arrest, refusing to be handcuffed. \$1,847.00 was vouchered pursuant to § 87(2)(b)'s arrest, as were 12 glassine of cocaine, a large plastic bag of cocaine and a clear ziplock bag containing the plastic glassines of cocaine. PO Brunetti wrote that he recovered the drugs from § 87(2)(b)'s waistband at the corner of South Portland Avenue and Fulton Street. PO Brunetti also vouchered a pink memo book recording drug transactions (encl.17a-o).

PO Joseph Brunetti: CCRB Statement regarding the Arrest of § 87(2)(b) on November 8, 2006 and December 9, 2006

On February 9, 2007, the CCRB interviewed PO Joseph Brunetti (encl.18a-c). PO Brunetti is a § 87(2)(b)-old white male with brown hair and brown eyes. § 87(2)(b). On November 8, 2006 and December 9, 2006, PO Brunetti was working anti-crime with PO Sperco. He has been working anti-crime for 3 years at the 88th precinct.

On November 8, 2006, PO Brunetti worked 5:00 PM to 12:35 AM the next day. He was in plainclothes and was in a burgundy four-door sedan.

On November 8, 2006, PO Brunetti and PO Sperco saw § 87(2)(b) sitting in the driver's seat of a Mercedes Benz in a no standing zone on Myrtle Avenue, at the corner of Prince Street. PO Brunetti was unsure whether or not the car's engine was running or not, but the car was stationary, and pulled over to the side of the road. He believed that the engine was running.

PO Brunetti and PO Sperco decided to stop the car solely because it was in violation of the no parking zone. At the time when the officers decided to enact the car stop, they had no suspicion that any criminal activity was afoot aside from the vehicle and traffic law violation. The officers parked their vehicle next to, but slightly in front of, the vehicle § 87(2)(b) was inside. PO Brunetti approached the passenger's side and PO Sperco approached the driver's side. There were no passengers in § 87(2)(b)'s vehicle. PO Brunetti and his partner did not have their weapons drawn when they approached the vehicle. An individual approached the vehicle and opened the front passenger's side door of the vehicle as if he was going to enter the vehicle, but he ran away down Myrtle Avenue towards Ingersoll Houses when the officers approached him. This unknown individual was not apprehended. When the officers got to the car, § 87(2)(b) put his car into drive and made a right onto the sidewalk aligning Prince Street. PO Brunetti and his partner got back into their vehicle and followed him, calling for additional units. There is a stoplight at the end of Prince Street, where it intersects Tillary Street. The light was red and there were multiple cars stopped at the light. § 87(2)(b)'s vehicle hit the vehicle in front of him, and he got out of the car and ran down Prince Street to Tillary Street, and down Tillary Street, entering Ingersoll Houses. PO Brunetti got out of the car and ran after § 87(2)(b). Before he entered Ingersoll Houses, § 87(2)(b) pulled a large Ziploc bag out of his waistband, and threw it in a pile of garbage on the sidewalk aligning Tillary Street. PO Brunetti caught up with § 87(2)(b) as did other units, on 5 Fleet Walk, which is in the confines of Ingersoll Houses. § 87(2)(b) willingly got onto the ground and was handcuffed without incident. PO Brunetti went back to where § 87(2)(b) had dropped the Ziploc bag and recovered approximately two ounces of cocaine- an eight once bag and a large number of small bags of cocaine- from the bag. He then went back to § 87(2)(b)'s car and searched it because he believed that because § 87(2)(b) had had contraband on his person, he could also have contraband in his car. The car was vouchered for asset forfeiture. § 87(2)(b) was arrested and brought back to the 88th Precinct by another unit.

On December 9, 2006, PO Brunetti worked 5:00 PM to 12:35 AM the next day. He was in plainclothes and was in a burgundy four-door sedan.

PO Brunetti and his partner were driving behind a livery cab westbound on Fulton Street. The cab had a defective brake light, so the officers decided to stop the vehicle. At the time that PO Brunetti and his partner made the decision to stop the car, PO Brunetti was not aware that § 87(2)(b) was inside the vehicle. PO Brunetti had not observed the livery cab stop or pick up any passengers before stopping the cab. As PO Brunetti approached the driver's side of the cab, he looked into the backseat of the cab and saw an individual attempting to put a large Ziploc bag, with white powder inside, in the back of his pants inside his waistband. PO Sperco was approaching the passenger's side of the vehicle. PO Brunetti walked around to the passenger's side, where the individual was sitting, and realized that the individual was § 87(2)(b).

PO Brunetti opened the backseat door and asked § 87(2)(b) to step out of the vehicle. PO Brunetti and PO Sperco did not have their firearms drawn when they initially approached the livery cab, nor did they draw their guns after seeing § 87(2)(b) in the vehicle. § 87(2)(b) complied with the instructions and PO Brunetti pulled the plastic bag out of § 87(2)(b)'s rear waistband. The top of the bag was visible to PO Brunetti because it was sticking out of § 87(2)(b)'s pants. PO Brunetti told § 87(2)(b) that he was under arrest. § 87(2)(b) elbowed PO Brunetti in the chest. PO Brunetti hit § 87(2)(b) with a closed fist on the right side of his face. He then attempted to restrain § 87(2)(b) by holding his arms to his torso and pinning him against the hood of the car. PO Brunetti did not know where his partner was while he began to struggle with § 87(2)(b) but stated that when he put § 87(2)(b) on the hood of the car, his partner also began to struggle with § 87(2)(b). It took the officers about two minutes to handcuff § 87(2)(b). PO Brunetti and PO Sperco did not have any physical interaction with § 87(2)(b) while he was placed against the hood of the car, aside from placing him against the hood of the car and attempting to pull his arms behind his back. PO Brunetti did not search the livery cab and did not know if his partner did. PO Brunetti called for a sergeant, who arrived three minutes after § 87(2)(b) was successfully placed in handcuffs. § 87(2)(b) was quiet after being handcuffed.

Before November 8, 2006, PO Brunetti did not know § 87(2)(b).

PO Charles Sperco: Memobook (11/08/2006)

On November 8, 2006, at 10:00 PM, PO Sperco observed a vehicle parked in a no standing zone at the northeast corner of Myrtle Street and Prince Street. He approached the vehicle with shields out ID as police officer and told driver to show credentials. The driver fled scene at a high rate of speed almost running PO Sperco over. There was a vehicle pursuit that led to a vehicle accident at Tillary Street and Prince Street. There was a foot pursuit leading to 5 Fleet Walk. The perpetrator was apprehended. Perp did throw contraband in front of 200 Tillary Street. At 10:18 PM PO Brunetti placed one individual under arrest (encl.19a-c).

PO Charles Sperco: Memobook (12/09/2006)

On December 9, 2006 at 9:35 PM § 87(2)(b) was placed under arrest (encl.19a-c).

PO Charles Sperco: CCRB Statement regarding the Arrest of § 87(2)(b) on November 8, 2006 and December 9, 2006

On February 9, 2007, the CCRB interviewed PO Charles Sperco (encl.20a-c). PO Sperco is a § 87(2)(b) year-old white male with brown hair and brown eyes. On November 8, 2006 and December 9, 2006, PO Sperco was working 88th Precinct Anti-Crime with PO Brunetti. PO Sperco has been working anti-crime for about six months. On both days, he was in plainclothes and was working 1700 hours to 0035 hours. He was in a maroon Chevy Impala on both days.

On November 8, 2006, PO Sperco and PO Brunetti observed a car stopped in a no standing zone on Myrtle Avenue. PO Sperco was unsure if the car's engine was running or not, but it was stationary. The officers parked their car in front of the vehicle, to its left side, blocking it in. PO Sperco said that at the time when he and PO Brunetti decided to enact the car stop, he did not have any belief that the driver or occupants of the vehicle were engaged in any criminal activity other than the VTL violation that they observed. PO Sperco approached the driver's side of the vehicle, and he was not sure where PO Brunetti was. There were no passengers in the vehicle. Neither PO Sperco nor PO Brunetti had their firearms drawn. There was an individual standing on the sidewalk, and he ran away when the officers approached the vehicle. PO Sperco asked for the driver's license and registration, and the driver began to move the car, so PO Sperco attempted to open the front driver's seat door. The driver drove his vehicle over the corner of the sidewalk and then down Prince Street, running into a car that was stopped in the line of cars at the stoplight at the intersection of Prince Street and Tillary Street. The driver, later identified as § 87(2)(b), exited the vehicle and ran down Prince Street and took a right on Tillary Street while PO Sperco and his partner pursued § 87(2)(b) on foot. PO Sperco saw § 87(2)(b) drop an object onto the sidewalk in front of 200 Tillary Street. § 87(2)(b) continued running, and PO Sperco and PO Brunetti caught up to § 87(2)(b) in front of 5 Fleet Walk, which is within the confines of Ingersoll Houses. PO Sperco and PO Brunetti went back to 200 Tillary Street where they had seen § 87(2)(b) drop an unknown object, and

recovered a quantity of cocaine. PO Sperco stated that he and PO Brunetti went back to § 87(2)(b)'s vehicle after recovering the contraband from in front of 200 Tillary Street. They moved the car out of traffic and then searched it. PO Sperco stated that he and PO Brunetti searched the car because, "at that point, it was arrest evidence." PO Sperco does not know whether the vehicle was vouchered and was not aware of any additional contraband that was recovered pursuant to the arrest.

On December 9, 2006, PO Sperco and PO Brunetti enacted a car stop on a black sedan, which was a livery cab. PO Sperco believes that the car had a broken taillight. At the time when the officers decided to stop the vehicle, they did not have any knowledge that § 87(2)(b) was inside the car. The car had not stopped, discharged passengers or picked up passengers while PO Sperco and PO Brunetti were driving behind it. After the officers put the lights and sirens on in their car, PO Sperco saw the individual in the back seat turning his head and looking back at the officers. PO Sperco approached the passenger's side of the car and PO Brunetti approached the driver's side of the car. As PO Sperco looked into the backseat, he saw an individual moving both of his arms to one side of his body. This caused PO Sperco to believe that the individual in the backseat may have had a weapon and therefore may be a threat to his safety. PO Brunetti came around to the passenger's side of the vehicle. PO Sperco did not tell him that he should come to the passenger's side of the vehicle, so he believes that PO Brunetti must have been making his own observations regarding the individual's behavior. Neither PO Sperco nor PO Brunetti drew their weapons at any point during this arrest. PO Sperco held the passenger's side back door of the car open and issued the individual instructions to exit the vehicle, which he complied with. PO Brunetti took § 87(2)(b) away from the car and PO Sperco searched the backseat, inside the cushion and underneath the backseat, in case § 87(2)(b) had put a weapon in the area where he had been sitting in the car. PO Sperco saw PO Brunetti and § 87(2)(b) struggling next to the car. § 87(2)(b) was "throwing" his elbows and PO Brunetti was attempting to pull his arms behind his back. PO Sperco saw PO Brunetti punch § 87(2)(b) one time in the face after he threw his elbows at PO Brunetti. PO Sperco stopped searching the car to help PO Brunetti handcuff § 87(2)(b). The officers struggled with § 87(2)(b) by placing him against the hood of a car and by pulling his arms behind his back, which was the extent of the force used to enact § 87(2)(b)'s arrest. It took approximately two minutes to handcuff § 87(2)(b). An unknown quantity of cocaine was recovered from § 87(2)(b)'s person, but PO Sperco did not actually see the cocaine onscene, nor did he see PO Brunetti recover the cocaine.

PO Sperco did not realize that the individual in the backseat of the car was § 87(2)(b) until he was helping to fill out a pedigree card for him and recognized the name.

Sgt. Charlton Telford: CCRB Statement

On February 9, 2007, the CCRB interviewed Sgt. Charlton Telford (encl.22a-b). Sgt. Telford is a § 87(2)(b)-old black male with black hair and brown eyes. § 87(2)(b) On November 8, 2006 and December 9, 2006, Sgt. Telford was the 88th Precinct Anti-Crime sergeant. He was working with PO Santana. He did not have any memobook entries regarding this incident. He was in a black Chevy Impala.

On November 8, 2006, the second SNEU team called for a foot pursuit. Sgt. Telford responded to 5 Fleet Walk and saw PO Brunetti and PO Sperco restraining an individual identified through investigation as § 87(2)(b). The officers told him that the § 87(2)(b) was sitting in his car on Prince Street and Myrtle Avenue and speaking with an individual who was standing on the sidewalk outside of the car. The officers approached the vehicle and § 87(2)(b) drove away. § 87(2)(b) then got out of the vehicle and ran, dropping something along the way. Sgt. Telford asked one of the responding units to transport the arrest and told the anti-crime officers to retrace § 87(2)(b)'s steps to see if he had dropped a weapon or narcotics. They later recovered a large quantity of narcotics in a pile of trash while retracing § 87(2)(b)'s steps. § 87(2)(b) had \$7000 on his person.

On December 9, 2006, Sgt. Telford responded to an anti-crime call and responded to see § 87(2)(b) in handcuffs. His officers informed him that they had pulled over a livery cab for a traffic infraction and, while speaking to the driver of the cab, saw § 87(2)(b) putting contraband in his waist. The officers told him that when they got out of the car, § 87(2)(b) resisted arrest and force was used to place him in custody. The officers found a large amount of cocaine and cash from his person. The officers searched the backseat of the cab to ensure that there was no additional contraband in the backseat. § 87(2)(b) was upset but was not physically resistant when Sgt. Telford was present. § 87(2)(b) told Sgt. Telford that he had been punched. Sgt. Telford asked the officers what had happened and they said that when § 87(2)(b) got

out of the car he was flailing and that he attempted to elbow one of the officers in the face. No officer specifically admitted to punching § 87(2)(b) § 87(2)(b) had \$8000 on his person and a memobook of alleged drug transactions on his person.

Before November 8, 2006, Sgt. Telford did not know § 87(2)(b)

Communications Records

SPRINT (11/08/2006)

On November 8, 2006, at 10:08 PM, 88th Precinct anti-crime put over the radio that they sought a perpetrator wearing a gray sweatshirt. However, the perpetrator was apprehended at 5 Fleet Walk. At that point, no further units were needed. At 10:12 PM, anti-crime noted that they were looking for an additional black male who was 5'7", about 30 years old, wearing a black nylon and leather jacket, who was last seen running southbound on Navy Walk and who fled towards Park Avenue. He was not apprehended, and one individual was transported to the 88th Precinct stationhouse (encl.23a-e).

SPRINT (12/09/2006)

On December 9, 2006 at 7:35 PM, one male was stopped at South Portland Avenue and Fulton Street. At 7:36 PM, one individual was placed under arrest at the location. At 7:41 PM, one male perpetrator was out of an automobile (encl.27).

Police Documents

Command Log (11/08/2006)

At 10:30 PM on November 8, 2006, § 87(2)(b) was presented at the 88th Precinct stationhouse as an arrest for criminal possession of a controlled substance and assault, which occurred at 5 Fleet Walk. Nothing abnormal was noted in § 87(2)(b)'s physical and mental condition. OCCB NITRO was notified of his arrest (encl.24).

Command Log (12/09/2006)

At 7:50 PM on December 9, 2006, § 87(2)(b) was presented at the 88th Precinct stationhouse front desk as an arrest for criminal possession of a controlled substance. There was no notation regarding his physical or mental condition at the time of his arrest in the command log (encl.28).

Criminal History of the Civilian

§ 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Substantiated Allegations which resulted in the Imposition of Discipline

Neither PO Brunetti nor PO Sperco have had any CCRB allegations substantiated against them in their respective ten and six years of tenure (encls.2, 3).

Conclusions and Recommendations

Officer Identification

Because both PO Brunetti and PO Sperco acknowledged seeing § 87(2)(b) in violation of New York Vehicle and Traffic Law on November 8, 2006 and making the decision to stop his vehicle on that date, a vehicle stop has been pleaded against each of them. Because § 87(2)(b) stated that both officers who stopped his car on November 8, 2006 had their firearms drawn and pointed into the car, an allegation of guns pointed has been pleaded against PO Brunetti and PO Sperco. Because § 87(2)(b) alleged that the officer on the driver's side of his vehicle enacting the car stop said, "Don't fucking move," and PO Sperco was on the driver's side of the vehicle, an allegation of discourtesy has been pleaded against him. Because the CCRB could not identify the officers who allegedly cut § 87(2)(b)'s vehicle off at Prince Street and Tillary Street and subsequently placed him in custody, an allegation of guns pointed and the search of § 87(2)(b)'s vehicle has been pleaded against "Officers" on November 8, 2007.

Because both PO Brunetti and PO Sperco acknowledged seeing the livery cab in which § 87(2)(b) was an occupant in violation of New York Vehicle and Traffic Law on December 9, 2006 and making the decision to stop his vehicle on that date, a vehicle stop has been pleaded against each of them. Because § 87(2)(b) stated that both officers who stopped the livery cab on December 9, 2006 had their firearms drawn and pointed into the car, an allegation of guns pointed has been pleaded against PO Brunetti and PO Sperco. Because § 87(2)(b) identified PO Brunetti as the officer who physically removed him from the backseat of the livery cab in which he was an occupant on December 9, 2006 and PO Brunetti acknowledged doing so, an allegation of a forcible stop has been pleaded against PO Brunetti. Because PO Brunetti acknowledged striking § 87(2)(b) with a closed fist on December 9, 2006, this allegation has been pleaded against him. Because PO Sperco acknowledged searching the backseat of the livery cab in which § 87(2)(b) was an occupant on December 9, 2006, an allegation of a car search has been pleaded against him.

Undisputed Facts

It is undisputed that on November 8, 2006, PO Brunetti and PO Sperco stopped the vehicle in which § 87(2)(b) was an occupant. It is undisputed that on December 9, 2006, PO Brunetti and PO Sperco stopped the vehicle in which § 87(2)(b) was an occupant. It is undisputed that on December 9, 2006, PO Brunetti removed § 87(2)(b) from a vehicle in which he was an occupant and that he subsequently struck § 87(2)(b) in the face with a closed fist. It is undisputed that PO Sperco searched the backseat of the livery cab in which § 87(2)(b) had been an occupant.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g)

Allegations and Analysis

Allegation A: On November 8, 2006, PO Joseph Brunetti stopped the car in which § 87(2)(b) was an occupant.

Allegation B: On November 8, 2006, PO Charles Sperco stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) provided a photo of the area in which his vehicle was standing on November 8, 2006 when he was stopped by PO Brunetti and PO Sperco. It is clear from the photograph provided that § 87(2)(b) was in a “No Standing” zone when he was stopped § 87(2)(g).

It is recommended that Allegation A and B be closed Exonerated.

Allegation C: On November 8, 2006, PO Joseph Brunetti pointed his gun at § 87(2)(b)

Allegation D: On November 8, 2006, PO Charles Sperco pointed his gun at § 87(2)(b)

Allegation E: On November 8, 2006, PO Charles Sperco spoke rudely to § 87(2)(b)

Allegation F: On November 8, 2006, officers pointed their guns at § 87(2)(b)

Allegation G: On November 8, 2006, officers searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

it is recommended that Allegations C, D, E, F and G be closed Unfounded.

Allegation H: On December 9, 2006, PO Joseph Brunetti stopped the car in which § 87(2)(b) was an occupant.

Allegation I: On December 9, 2006, PO Charles Sperco stopped the car in which § 87(2)(b) was an occupant.

Allegation J: On December 9, 2006, PO Joseph Brunetti pointed his gun at § 87(2)(b)

Allegation K: On December 9, 2006, PO Charles Sperco pointed his gun at § 87(2)(b)

Allegation L: On December 9, 2006, PO Joseph Brunetti stopped § 87(2)(b)

Allegation M: On December 9, 2006, PO Joseph Brunetti used physical force against § 87(2)(b)

Allegation N: On December 9, 2006, PO Charles Sperco searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

It is therefore recommended that Allegations H, I, J, K, L, M and N be closed Unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: